

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN NEPAL

Complete Community Opposition How-To

This guide uses the Nepali terms and bodies you'll actually run into — the Brief Environmental Study, the IEE and the EIA, the mandatory public hearing, the recommendation of the local level, the writ petition and public interest litigation — and explains each in plain words the first time. Nepal's Supreme Court has an exceptional record in environmental cases, and that is the ground this guide stands on.

INTRODUCTION & FRAMEWORK

For nearly three decades the Nepali government wanted to build the **Nijgadh International Airport** — a \$3.45 billion mega-project on 8,000 hectares of forest in Bara, beside Parsa National Park, in a wildlife corridor for tigers and elephants. Its own environmental study admitted that building it would fell **more than two million trees**. Successive governments called it a matter of national pride and pushed it hard; environmentalists and local communities resisted just as hard. And two advocates, **Prakash Mani Sharma and Ranju Hajur Pandey**, took it to court — the tool Nepal makes unusually powerful. On **26 May 2022, an extended full bench of the Supreme Court quashed every government decision on the airport**. The Court found the government's environmental assessment was a "**sham**" — parts reportedly cut and pasted from a hydropower study — that alternatives were never explored, and that "national pride" is no licence to bypass the law. The airport as envisioned was, in the words of those who fought it, legally dead. A forest, and the tigers and rivers within it, were saved by a lawsuit.

The advocates Prakash Mani Sharma and Ranju Hajur Pandey, who quashed the Nijgadh airport, drew on two unusual strengths Nepal gives communities. First, **the public hearing is mandatory at every level of environmental assessment**, and the report must be displayed at the **ward office and the project site** — not just in Kathmandu. Second, and decisively, **Nepal's Supreme Court has gone further than most courts anywhere**: it halted the Nijgadh airport as a "sham," ordered the government by mandamus to pass a climate law, struck down provisions permitting construction inside protected areas, and has described large-scale destruction of a mountain range as amounting to **ecocide**. Backing this is **Article 30** of the Constitution — the fundamental **right to live in a clean and healthy environment** — which, since the **Godavari Marble** case, the Court has treated as intrinsic to the right to life itself. But these tools have real limits, and this guide states them plainly. The government has treated the Nijgadh ruling as a "yellow light" rather than a red one, floating a "smaller footprint" airport and trying to revive the project — the connecting expressway is still being built. A Supreme Court win in Nepal is real and powerful, but a determined state will try to reopen it, so a victory must be defended.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Nepali project needs its **environmental assessment** (a Brief Environmental Study, an **IEE**, or a full **EIA** by scale), each with a **mandatory public hearing**; it often needs the **recommendation of the local level** (the municipality or rural municipality); and it can be challenged by **writ petition** in the Supreme Court on the constitutional right to a clean environment. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **The Supreme Court is your sharpest lever** — its environmental record is exceptional, and a writ petition on Article 30 has halted even a national-pride mega-project.
- **If the assessment is a sham or the mandatory hearing was skipped, that's a strong ground** — Nijgadh turned on a "cut-and-paste" EIA.
- **If your local government can withhold its recommendation, that's real leverage** — federalism devolved genuine power to the local level.
- **But a win must be defended** — the state will try to revive a project, so keep the coalition and the vigilance alive.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the mandatory public hearing, the local-level recommendation, the writ petition — and **run every front at once**: the documents, the hearing, the courts, the movement, the press. That's how Nijgadh was won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

Nepal's environmental assessment is **three-tiered** by scale: a **Brief Environmental Study (BES)** for the smallest, an **Initial Environmental Examination (IEE)** for medium projects, and a full **Environmental Impact Assessment (EIA)** for the largest — approved by the relevant tier of government under the Environment Protection Act (2019) and Rules (2020), which **devolved much of the system**. The **local level** (municipality or rural municipality) often must give a **recommendation**, and holds real power under federalism. Sector ministries grant the licences. And the **Supreme Court**, through writ petitions, sits above them all. Know which tier decides your project — and remember the local level and the Court are your strongest reachable points.

How a Project Moves — and Where You Jump In

The assessment and the mandatory hearing. The developer prepares the BES/IEE/EIA (with a **Terms of Reference** for the larger tiers) and must hold a **public hearing** and display the report at the ward office and the site. *Your opening* — *and it arms every later step*: attend the hearing, put your objections on the record, and demand the report is genuinely displayed and the hearing genuinely held.

The local-level recommendation. Many projects need the local government's recommendation. *Your opening*: press your municipality to withhold or condition it.

The approval. The relevant tier approves. *Your opening*: a sham assessment or a skipped hearing can be challenged.

Construction. *Your opening*: a **writ petition** in the Supreme Court on the right to a clean environment — the Nijgadh route.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company and financier records set the exposure. **What it still needs** — the assessment not approved, the local recommendation not given,

financing not closed: whatever's missing is the soft spot. **Who's paying** — banks, donors, and international financiers with their own environmental standards.

Who's Supposed to Be Watching

Each is an ally or an arena. The **assessing tier of government** runs the BES/IEE/EIA and can be pressed. The **local level** can withhold its recommendation. The **Supreme Court**, via writ petition, is the sharpest watchdog — with an exceptional environmental record. The **National Human Rights Commission** takes rights complaints. And Nepal's **strong environmental advocates, its community organisations, and a free press** are the forces that reach furthest — the combination that saved Nijgadh's forests.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether the assessment is a sham or the hearing was skipped, whether the local level can withhold cooperation, and how set the state is on the project.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Objections at the mandatory public hearing	15–35%	during assessment	low	On record; conditions or a redo
Withholding the local-level recommendation	20–45%	months	low	Project stalled locally
Writ petition (Supreme Court, Article 30)	30–55%	months–2 yr	low	Decisions quashed (Nijgadh)
"Sham assessment / skipped hearing" ground	30–55%	varies	low	Approval nullified
Movement + media	25–50%	months–yr	low	Political cost; project reconsidered
Everything together (sham EIA, Court engaged)	40–65%	1–2 yr	low	Quashed, delayed, redesigned
Everything together (national-pride, state-backed)	25–50%	1–3 yr	low	Delayed, conditioned, exposed (and maybe revived)

The lever that moves the needle most is the **writ petition in the Supreme Court**, backed by the mandatory hearing, the local recommendation, and the movement. Nijgadh shows the ceiling (a \$3.45 billion national-pride project quashed). The honest floor is a state that tries to revive a win — so aim to win *and* defend, and count a quashed approval, a withheld recommendation, delay, and a forced redesign as wins.

On cost: participating, organising, and filing a writ are low-cost, and Nepal's public-interest lawyers bring the cases; the Supreme Court's openness to public interest litigation is a genuinely powerful, accessible advantage.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this assessment, this flaw, this right — is strong.
Answer five questions in writing.

- 1. What is it, and who's behind it?** Name the project, the company, its owners, its financiers.
- 2. Where is it, and what does it touch?** Get the footprint and lay it over **forest and protected areas**, rivers, wildlife corridors, farmland, communities. **Forest, protected areas, and rivers are your sharpest levers**, so this map is your most important document — Nijgadh turned on two million trees and a wildlife corridor.
- 3. What stage is it at, and what's the next deadline?** Which tier of assessment applies (BES/IEE/EIA)? Is the public hearing scheduled? Has the approval issued (opening a writ)? These openings are time-bound.
- 4. What does it still need that it lacks?** An assessment not approved, a local recommendation not given, financing not closed. The missing piece is the soft spot.
- 5. Who else is affected, and who already opposes it?** Neighbours, the local government, environmental advocates, national groups. Nijgadh united advocates, communities, and the courts.

What this looks like in real life. A community learns a project is planned that will clear forest and cross a wildlife corridor, its EIA thin and its hearing a formality. The five questions yield: a company (and financiers) behind it; a site clearing forest and protected land (the sharp levers); an EIA with a hearing pending; a project still needing approval and the local recommendation; and a coalition of communities, advocates, and the municipality. That's the Nijgadh pattern — expose the sham assessment, demand a real hearing, and ready the writ petition.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and Nijgadh was won by exposing an EIA that was a "sham." Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the BES/IEE/EIA and its Terms of Reference, the approval and conditions, the local recommendation, the forest and wildlife studies. Nepal's right-to-information law forces out what isn't public. Then read the assessment hard for flaws — an understated impact, an ignored alternative, a skipped or sham hearing, a report never displayed at the ward office and site, and — as at Nijgadh — copied or fabricated sections.

Layer two: the ground truth. Dated, located photographs and video of the site, the forest, the rivers, the wildlife — baseline images before any damage most of all — and the testimony of affected residents.

Layer three: the map of forest and protection. Lay the project over forest, protected areas, wildlife corridors, and rivers, so each lever is visible. Walking into the Supreme Court with the assessment, the approval, and that map is what makes it act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The BES/IEE/EIA and Terms of Reference, the approval and conditions, the local recommendation, the forest and wildlife studies** — from the assessing tier and the local level; force out the rest under the right-to-information law (8A).
- **Local-level records** — from the municipality or rural municipality.
- **Ownership and financing** — company and financier records.

- **The forest-and-protection map** — forest, protected areas, wildlife corridors, and rivers, laid over the site.
- **Dated site evidence and named testimony** — photographs marked with date and place, and residents' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Nijgadh's advocates, communities, and press together moved the Court. Build your coalition in four moves.

Start with a tight core. The neighbours most affected, the people who know the forest and rivers, a few tireless organisers, and respected local figures.

Win over your local government. Under federalism the local level holds real power and often a recommendation you need withheld. Cultivate your municipality — a local government on your side is a powerful ally.

Bring in advocates and lawyers — early. Nepal's environmental advocates and public-interest lawyers bring the writ petitions the Supreme Court is famously open to. Team up early and hand them your documents and the assessment's flaws.

Build to last, and defend the win. Nepali fights run for years, and — the Nijgadh lesson — a win can be reopened. Build clear roles, a secure shared archive, a way to decide together, a plan for the toll, and a plan to guard a victory the state may try to revive.

STEP 4: LEGAL CHALLENGES & THE SUPREME COURT

Law is Nepal's sharpest lever, because the Supreme Court has an exceptional environmental record and public interest litigation is genuinely open.

Use the Mandatory Hearing First

Everything downstream is stronger if you used the **mandatory public hearing** — attended, objected, and insisted the report was genuinely displayed at the ward office and the site. A skipped or sham hearing, or a report never properly displayed, is itself a defect.

The Writ Petition and Article 30

The core route is a **writ petition** in the **Supreme Court**, which is unusually open to **public interest litigation** — anyone with a genuine concern can bring an environmental case. The constitutional foundation is **Article 30**, the right to a clean and healthy environment, which since **Godavari Marble** the Court has treated as **intrinsic to the right to life**. The Court has halted a national-pride airport, ordered a climate law by mandamus, struck down protected-area construction provisions, and named large-scale destruction as ecocide. Frame the harm as a violation of the right to a clean environment, and bring the writ.

The Assessment, the Local Level, and Sham Grounds

Two more levers. A **sham or defective assessment** — a "cut-and-paste" EIA, a skipped hearing, an unexplored alternative — is a strong ground (it won Nijgadh). And your **local government's recommendation** is real leverage: press it to withhold or condition its cooperation under federalism.

The Honest Limits

Straight talk: the Supreme Court is a genuinely powerful lever, but litigation takes time, the state pushes national-pride projects hard, and — the Nijgadh lesson — a win can be reopened with a "smaller footprint" revival. So use the strong tools — the mandatory hearing, the writ petition on Article 30, the sham-assessment ground, the local recommendation — but pair them with the movement and the press, plan to defend a victory, and count a quashed approval, a withheld recommendation, delay, and a forced redesign as wins alongside a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes a sham. Not "the project is bad" but *"the EIA is a cut-and-paste sham, the hearing was skipped, and alternatives were never explored — grounds to quash the approval, as at Nijgadh."*

A right becomes a writ. *"This violates our Article 30 right to a clean and healthy environment — intrinsic to the right to life — and we ask the Court to quash it."*

Forest becomes the cause. *"Two million trees, a tiger corridor, the rivers our valley depends on — for a project the law does not permit here."*

The harm becomes a public story. *"The forest and wildlife our families have always known — for a 'national-pride' project built on a fabricated study."*

Match it to the venue: the objections to the hearing; the sham assessment and the rights violation to the Supreme Court writ; the recommendation to the local government; the forest and the human story to the press.

STEP 5: MEDIA STRATEGY

In Nepal, public attention strengthens a strong court — Nijgadh became a national cause that framed the ruling as a victory for the rule of law. A free press and environmental advocates make the media front central.

Lead with people and place, not procedure. Not "the EIA was deficient" but "the forest and wildlife our families have always known — for a 'national-pride' project built on a fabricated study." Use your strongest material: dated photographs, the map of the project over the forest and corridor, and named residents.

Work several audiences at once. Local and national press build political pressure; environmental advocates amplify and lend authority; and international attention reaches financiers and the world's interest in Nepal's biodiversity. Make it easy: captioned photos, accurate summaries, a map, strong voices.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — get legal advice before any direct action.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Right-to-information request (to the assessing tier / local level).

Subject: Request for the assessment and approval — [project].

"Under the Right to Information Act, we, residents of [place], request the BES/IEE/EIA and its Terms of Reference, the approval and conditions, the local recommendation, and the forest and wildlife studies for [project] at [location]. [Contact.]"

8B — Objection at the mandatory public hearing.

Subject: Objection — public hearing on [project].

"We, residents of [place], object to [project]: [the assessment understates this impact / copies another study; the hearing was not genuinely held; the report was never displayed at our ward office and site]. We ask that approval be refused or a genuine assessment required. [Attach evidence.]"

8C — To the local government (recommendation).

Subject: Request to withhold the local recommendation for [project].

"We, residents of [place], ask our municipality to withhold or condition its recommendation for [project], which threatens [our forest / rivers / wildlife]. [Attach evidence.]"

8D — To a public-interest lawyer (writ petition).

Subject: Writ petition — [project] and Article 30.

"Our community faces [project], which threatens [our forest / a wildlife corridor / rivers] in violation of our Article 30 right to a clean and healthy environment. We've gathered [the assessment, its flaws, photographs] and ask you to bring a writ petition, as partners. [Contact and evidence summary.]"

8E — To the National Human Rights Commission.

Subject: Complaint — [project] at [location].

"We report that [project] violates our right to a clean and healthy environment and threatens [our community], and [any threats to community members]. We ask the Commission to investigate. [Attach evidence.]"

8F — To a financier or donor.

Subject: Environmental and legal risk in [project].

"We understand your institution may be financing [project] at [location], which [clears protected forest / rests on a defective assessment] and faces a Supreme Court challenge. We ask you to weigh this against your own standards. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect [forest / river / wildlife] from [project].

"For generations the people of [place] have lived beside [the forest / the river] at [location] — a corridor for tigers and elephants. Now [project] threatens it — on a study that doesn't hold up. We can provide photographs, documents, a map and interviews. [Contact.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our forest / rivers / wildlife]. At Nijgadh, a lawsuit made the Supreme Court quash a \$3.45 billion 'national-pride' airport built on a sham study. With the mandatory hearing, our local government, and a writ petition on our right to a clean environment behind us, we have a real chance. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project and its footprint, and look for the forest and protected-area levers.** These are your sharpest.
2. **Use the mandatory public hearing — object and insist the report is genuinely displayed (8B).**
3. **Request the assessment (8A), and read it for a sham EIA, a skipped hearing, or copied sections.**
4. **Photograph everything, with dates and places.** Baseline images before any damage matter most.
5. **Ask your local government to withhold its recommendation (8C), and get a lawyer for a writ petition (8D).**
6. **Build the movement and go public (8G/8H).** Nijgadh was won this way.

Even lean, those six use your rights, build the record, hit the local recommendation and the Supreme Court, and start a coalition.

WHEN THE SYSTEM IS TILTED

Nepal's tools are real, but the field can be tilted, and you must plan for it.

When it's a "national-pride" project. The state pushes these hard. Don't fold: use the writ petition and the sham-assessment ground, keep the movement alive, and make the state's reliance on a defective study a public cost — "national pride" is no licence to break the law, as the Court said.

When a win is revived. This is the Nijgadh lesson: the state floats a "smaller footprint" to reopen a quashed project. Guard your win — return to the Court, keep the coalition and the vigilance alive.

When the hearing is a formality. A skipped or sham hearing, or a report never displayed at the ward office and site, is a defect. Document it.

What still works, and it's a lot. A Supreme Court unusually open to public interest litigation and willing to quash national-pride projects; the Article 30 right treated as intrinsic to life; the mandatory hearing; and a local level with real power to withhold cooperation.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Nepal has documented problems with the capture of large projects by political and land interests, so this matters.

How to spot it. Approvals against the evidence; a "sham" or copied EIA; a hearing skipped or stage-managed; land steered to brokers; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The **Commission for the Investigation of Abuse of Authority (CIAA)** investigates graft. The **Auditor General** examines public money. The **National Human Rights Commission** takes rights complaints. The **Supreme Court** can quash a tainted approval. And Nepal's **investigative press and advocates** have exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the CIAA, the Auditor General, and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the forest and protected-area levers aims it; organising builds the muscle; the writ petition presses the case; the media raises the cost. Together they multiply. One at a time, they stall — and remember to defend the win.

Early on (weeks 1–8): nail down the project, its footprint, and any forest or protected area; use the mandatory hearing and object; request the records; photograph the baseline; win over your local government; get a lawyer.

In the thick of it (months–years): ask the local level to withhold its recommendation; bring a writ petition in the Supreme Court on Article 30 and the sham assessment; build the movement and open the media front.

The long haul (years): carry the case through the Court; keep the movement alive; hold the line for a quashed approval, a withheld recommendation, delay, or a redesign — and defend the win against a "smaller footprint" revival.

FINAL ASSESSMENT

Stopping a destructive project in Nepal can be done — a lawsuit made the Supreme Court quash a \$3.45 billion national-pride airport that would have felled two million trees, on a study the Court called a sham. Hold both truths. Nepal's tools are real and, in one respect, exceptional: a Supreme Court unusually willing to act on environmental grounds and open to public interest litigation; the Article 30 right to a clean environment, treated as intrinsic to life; a mandatory public hearing at every level; and a local government with real devolved power. And the constraints are real: a state that pushes national-pride projects and, as at Nijgadh, tries to revive a quashed one.

Here's the discipline that wins. Find the forest and protected areas, and the flaw — the sham EIA, the skipped hearing — and pry loose the record. Use the mandatory hearing, and press your local government to withhold its recommendation. Bring a writ petition in the Supreme Court on your Article 30 right and the defective assessment. Build a coalition, carry the story to the public — and be ready to defend a win the state may try to reopen. Count a quashed approval, a withheld recommendation, delay, and a redesign as wins alongside a clean stop. That's what Nijgadh did — the advocates, the Court, and the right to a clean

environment together. So can you.